

jury trial was neither authorized by Title VIII nor required by the Seventh Amendment, and denied the jury request. *Rogers v. Loether*, 312 F. Supp. 1008 (ED Wis. 1970). After trial on the merits, the District Judge found that respondents had in fact discriminated against petitioner on account of her race. Although he found no actual damages, see n. 1, *supra*, he awarded \$250 in punitive damages, denying petitioner's request for attorney's fees and court costs.

The Court of Appeals reversed on the jury trial issue. *Rogers v. Loether*, 467 F. 2d 1110 (CA7 1972). After an extended analysis, the court concluded essentially that the Seventh Amendment gave respondents the right to a jury trial in this action, and therefore interpreted the statute to authorize jury trials so as to eliminate any question of its constitutionality. In view of the importance of the jury trial issue in the administration and enforcement of Title VIII and the diversity of views in the lower courts on the question,<sup>2</sup> we granted certiorari, 412 U. S. 937 (1973).<sup>3</sup> We affirm.

The legislative history on the jury trial question is sparse, and what little is available is ambiguous. There seems to be some indication that supporters of Title VIII were concerned that the possibility of racial prejudice on juries might reduce the effectiveness of civil

<sup>2</sup> The Seventh Circuit here was the first court of appeals to consider this issue, but the reported decisions of the district courts are evenly divided on the question. In addition to the District Court in this case, the court in *Cauley v. Smith*, 347 F. Supp. 114 (ED Va. 1972), held that jury trial was not required in an action under § 812. *Kastner v. Brackett*, 326 F. Supp. 1151 (Nev. 1971), and *Kelly v. Armbrust*, 351 F. Supp. 869 (N. D. 1972), held that jury trial was required.

<sup>3</sup> Petitioner married while the case was pending before the Court, and her motion to change the caption of the case accordingly was granted. 414 U. S. 1140 (1974).